

**BEFORE THE
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH &
BEYOND INC., *Complainant*,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT
(FMC#011982) consisting of EVERGREEN MARINE
CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN
MARINE (HONG KONG) LTD., AND EVERGREEN
MARINE (SINGAPORE) PTE. LTD., *Respondents*.

DOCKET NO. 24-12

JOINT STATUS REPORT

Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc¹ (“BBBY”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) (BBBY, collectively with Evergreen, the “Parties”), by their respective undersigned counsel, have conferred and hereby submit this joint status report further to ALJ Chintella’s instructions and guidance:

1. On January 5, 2026, a conference was held before ALJ Chintella at the request of Respondents to address anticipated evidentiary issues to be raised during summary judgment motion practice, final briefing or hearing arising from Complainant’s corporate witness testimony.
2. At that conference, ALJ Chintella stated that he would allow the continued or redeposition of Complainant’s corporate designee at Respondents’ option. Respondents requested an opportunity to confer with their client and noted the need for an adjusted schedule, including

¹ BBBY filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023 by and through which Bed Bath & Beyond Inc. changed its corporate name to 20240930-DK-Butterfly-1, Inc.

supplemental expert reports and summary judgment motions, as suggested by ALJ Chintella. ALJ Chintella advised the parties to confer on a proposed schedule, including summary judgment motions and pre-briefing or pre-hearing statements under 502.210.

3. Respondents have elected to proceed with the redeposition of Complainant's corporate witness as noticed. Complainant has agreed to produce one or more corporate witnesses. The scope of the deposition, however, is in dispute, as discussed below.

4. Counsel attended a meet and confer on January 8, 2026. Counsel agreed that given the anticipated corporate deposition and amended schedule, the expert depositions scheduled for the week of January 12, 2026 should be adjourned. Counsel also agreed on most of the dates in a proposed amended schedule, but are at an impasse on other issues, which are discussed separately by the parties below.

RESPONDENTS' POSITION

Respondents Will Proceed with Complainant's Corporate Deposition as Noticed

5. At that conference, ALJ Chintella informed the parties that he had reviewed the transcript and found that Complainant's corporate witness was not prepared for the deposition. Given ALJ Chintella's finding that Complainant's corporate witness was not prepared for deposition and ALJ Chintella's guidance on how evidentiary objections in the context of such testimony will be treated, Respondents have elected to proceed with the redeposition of Complainant's corporate designee as originally noticed. Complainant has indicated that it "will plan to make available a witness to discuss topics for which the prior designee indicated that they did not have knowledge." Any attempt by Complainant to limit the deposition(s), however, should be rejected out of hand as it denies Respondents the discovery to which they are entitled. Respondents are entitled to depose one or more witnesses with knowledge about the topics noticed and that should be the scope of this deposition. Limiting Respondents to the questions to which the prior witness responded that he did

not have knowledge would be overly restrictive and infringe upon Respondent's ability to obtain discovery. ALJ Chintella has already found that Complainant's corporate designee was not prepared. Thus, even on topics he did attempt to answer, Respondent should be able to test the veracity of those answers. Moreover, it is improper to reargue a matter which has already been decided. Complainant should be ordered to produce witnesses that will comply with Respondents' notices.

Summary Judgment Will Help Narrow the Issues and Flush Out Evidentiary Issues

6. As discussed in our January 5, 2026 Conference and based on ALJ Chintella's guidance, summary judgment motion practice is appropriate and will serve to narrow both the legal and factual issues and flush out evidentiary issues. Summary Judgment also is likely to resolve certain claims in full. Summary judgment motion practice should also assist ALJ Chintella in determining whether briefing or a hearing with live testimony is warranted. Thus, summary judgment will limit and focus the facts and issues that will be included in final briefing. Accordingly, Respondents propose the following schedule which includes, among other things, a schedule for motions for summary judgment:

January 23, 2026 - Deadline to complete Deposition of BBB's Corporate Witness;

February 6, 2026 - Deadline for Complainant to serve Supplemental Expert Report with respect to Corporate Witness testimony only, if any;

February 20, 2026 - Deadline for Respondents to serve Supplemental Expert Reports with respect to Corporate Witness testimony only, if any;

March 13, 2026 - Deadline to complete depositions of experts;

April 10, 2026 - Deadline to file and serve motion(s) for summary judgment, if any;

May 8, 2026 - Deadline to file and serve opposition to motion(s) for summary judgment;

May 22, 2026 - Deadline to file and serve replies to oppositions to motions for summary judgment;

Further Deadlines to be Determined after decision on Motions for Summary Judgment

Deadline to file and serve Prehearing Statements (60 days after entry of Order/Decision on Motions for Summary Judgment);

Hearing (30 day after prehearing statements, to be confirmed with parties/witnesses/Commission);

Deadline for Complainant to file and serve opening final brief (30 days after conclusion of hearing); and

Deadline for Respondents to file and serve final brief (21 days after Complainant's brief).

Complainant Should be Ordered to Pay Respondent's Costs and Fees for the Redeposition

7. Respondents respectfully request that Complainant be ordered to pay the costs and attorney fees associated with the redeposition of Complainant's corporate witness(es). In the alternative, Respondents request permission to file a motion for same. At this time, Respondents are not seeking the costs and fees associated with the presentation of the dispute to the Commission and are not seeking the costs and fees of expert reports or supplemental expert reports. Respondents, however, intend and reserve the right to seek all costs and fees at the appropriate time, including but not limited to petition under § 502.254 and the recovery of costs and fees associated with Requests for Admission.

Expert Witness Deposition Fees are for the Noticing Party's Account

8. Complainant and Respondent have each noticed the deposition of each other's expert witnesses. Respondents have requested that Complainant pay the reasonable expert fees associated with Complainant's deposition of Respondents' expert witness in accordance with F.R.C.P. Rule 26(b)(4)(E). Respondents agree to pay Complainant's expert witness for his appearance at his deposition, if reciprocated. The parties are continuing to confer on this issue and, as noted by Complainant below, the parties will raise any further impasse with the Presiding Officer if necessary, in a timely manner.

COMPLAINANT'S POSITION

9. As to the scope of the additional corporate testimony, Complainant suggested at the meet and confer that Complainant present a witness to testify to issues to which Complainant's designee previously testified that he did not know. During the meet and confer process, Respondents rejected this proposal. While Complainant has agreed to designate witness(s) on all issues contained in the Topics previously served, (1) the renewed deposition should be limited to the issues to which Mr. Kastin responded, "I don't know" and relevant follow-up questions, as opposed to an entirely new deposition rehashing the same issues or exploring issues which Respondents did not previously cover, and (2) Complainant has asked Respondents to provide any noticed topics for which it does not anticipate asking further questions. Complainant welcomes any guidance from the Presiding Officer as to the scope of the reopened corporate deposition.

10. Complainant disagrees with Respondents' position with respect to a demand for costs or fees associated with the reopening of the corporate deposition, and requests further briefing on that issue to the extent that the Presiding Officer considers granting such fees, as no motion for such fees has been made as of the time of this filing.

11. As to a schedule for remaining discovery, as noted in the joint section, above, the parties generally agree to the timing of briefing, with Complainant proposing that the parties engage in full merits briefing in lieu of summary judgment. Complainant respectfully requests that the Presiding Officer enter the schedule, as presented in the alternative below, and believes that proceeding to full briefing, rather than to cross-motions for motion for summary judgment, will serve the interests of judicial efficiency where (1) the Parties may *fully* present their evidence on all relevant issues, (2) the Presiding Officer, as the fact finder, can consider arguments from Respondents during such briefing regarding whether or how to consider evidence or perceived

credibility issues, and (3) the Presiding Officer may then determine, after evaluating each party's arguments and evidence, whether a further briefing or a hearing is necessary for a merits-based determination. Complainant believes this will be most efficient for all parties and the Presiding Officer, as it will prevent duplicative briefing and piecemeal determinations on issues before the Presiding Officer.

12. Based on the above, Complainant proposes the following schedule, which contemplates either summary judgment or briefing, at the Presiding Officer's direction. Complainant has based these deadlines off of those proposed by Respondent, tweaking slightly for the differences between the two sets of briefing:

January 23, 2026 - Deadline to complete Deposition of BBB's Corporate Witness

February 6, 2026 - Deadline for Complainant to serve Supplemental Expert Report with respect to Corporate Witness testimony only, if any

February 20, 2026 - Deadline for Respondents to serve Supplemental Expert Reports with respect to Corporate Witness testimony only, if any

March 13, 2026 - Deadline to complete depositions of experts

April 10, 2026 - Deadline to file and serve either, based on the ruling of the Presiding Officer: (1) Complainant's Opening Brief or (2) motion(s) for summary judgment, if any

May 8, 2026 - Deadline to file and serve either, based on the ruling of the Presiding Officer: (1) Respondents' Opposition Brief or (2) opposition to motion(s) for summary judgment

May 22/29, 2026 - Deadline to file and serve either, based on the ruling of the Presiding Officer: (1) Complainant's Reply Brief (29th) or (2) replies to oppositions to motions for summary judgment (22nd).

Further Deadlines to be Determined after decision by Presiding Officer on Motions for Summary Judgment or as Otherwise Directed

Deadline to file and serve Prehearing Statements (60 days after entry of Order from Presiding Officer directing submission, if deemed necessary)

Hearing (30 days after prehearing statements, to be confirmed with parties/witnesses/Commission)

If deemed necessary by Presiding Officer, deadline for Complainant to file and serve

opening final brief (30 days after conclusion of hearing)

If deemed necessary by Presiding Officer, deadline for Respondents to file and serve opposition brief (30 days after Complainant's brief)

If deemed necessary by Presiding Officer, deadline for Complainant to file and serve reply brief (21 days after Respondents' brief)

13. Further, with the goal of raising issues as they arise with the Presiding Officer, Respondents have demanded payment by Complainant to depose Evergreen's expert witnesses at those experts' hourly rates. Complainant has not agreed and has suggested alternately that each Party pay fees of its own experts. Respondents have taken this issue under advisement, and the parties will raise any further impasse with the Presiding Officer if necessary, in a timely manner.

14. Regarding the timing of this joint status report, Respondents' statement to the Presiding Officer in opposing counsel's January 9, 2026 email at 10:23 a.m. is inconsistent with counsels' course of dealing on the meet and confer process regarding this Report, and undersigned counsel will address further if so desired by the Presiding Officer.

Dated: January 9, 2026

Respectfully submitted,

[Signature Blocks on Following Page]

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